

DEFAULT DEADLINES (Calendar days unless noted as business days)

MILESTONE	DEFAULT TIMELINE	↑ REF
EMD to Escrow ■ BUSINESS DAYS — not calendar	3 business days after acceptance	3D(1)
Loan Contingency	17 days after acceptance	L(1)
Appraisal Contingency	17 days after acceptance	L(2)
Inspection / Investigation Contingency	17 days after acceptance	L(3)
Insurance Contingency	17 days after acceptance	L(4)
Review of Seller Documents	17 days after acceptance, or 5 days after delivery — whichever is later	L(5)
Title / Preliminary Report Review	17 days after acceptance, or 5 days after delivery — whichever is later	L(6)
Seller Deliver All Disclosures & Docs	7 days after acceptance	N(1)
Sign & Return Escrow Instructions	5 days after delivery from escrow holder	N(2)
HOA Documents Ordered	3 days after acceptance	N(3)
Smoke / CO Detector / Water Heater Bracing	7 days after acceptance	N(4)
Final Verification of Condition (Walkthrough)	5 days BEFORE Close of Escrow	J / 16
Offer Expiration (default)	3 calendar days after all buyer signatures at 5:00 PM	3C / 32A
Standard Close of Escrow	30 days after acceptance (negotiable)	3B
Remove Contingency	Written only — use C.A.R. Form CR-B — verbal removal has no legal effect	14

KEY DOLLAR RULES • POSSESSION • DISPUTE RESOLUTION

KEY DOLLAR RULES		COST ALLOCATION DEFAULTS — Paragraph Q	
Liquidated damages cap	3% of purchase price — 1 to 4 unit owner	NHD Report	Seller pays — Q(1)
Typical EMD range	1% to 3% of purchase price	Optional Wildfire Report	Negotiated — Q(2)
Home warranty (seller max)	\$625 — Paragraph Q(18)	Escrow Fee	Each party pays their own — Q(7)
Civil penalty — wrongful cancellation	Up to \$1,000 — Civil Code Section 10	Owner's Title Insurance Policy	Seller pays — Q(8)
Prorations calculated on	30-day month — Paragraph 17	Buyer's Lender Title Policy	Buyer pays — Q(9)
POSSESSION RULES		County Transfer Tax	Seller pays — Q(10)
Default possession time	6 PM on COE date upon notice of recording	City Transfer Tax	Seller pays — Q(11)
Seller leaseback 29 days or fewer	C.A.R. Form SIP — Paragraph 3M(2)	HOA Fee for Preparing Disclosures	Seller pays — Q(12)
Seller leaseback 30 days or more	C.A.R. Form RLAS — creates landlord-tenant relationship	HOA Certification Fee	Buyer pays — Q(13)
Tenant-occupied property	C.A.R. Form TOPA — Paragraph 4A	HOA Transfer Fees	Seller pays move-out / Buyer pays move-in
DISPUTE RESOLUTION		Home Warranty (if seller pays)	Seller max \$625 — Q(18)
Step 1 — Required first	Mediation — consumermediation.org	Smoke / CO Compliance	Negotiated — Q(4)
Step 2 — Only if initialed	Binding Arbitration — initialing Paragraph 31C waives jury trial right	Point of Sale Inspections	Negotiated — Q(5)
Notice to Buyer to Perform	Minimum 2 days — C.A.R. Form NBP		
Notice to Seller to Perform	Minimum 2 days — C.A.R. Form NSP		
Demand to Close Escrow	Minimum 3 days before cancellation — C.A.R. Form DCE		

THE BIG 5 CONTINGENCIES — What They Protect & How to Remove

CONTINGENCY	↑ REF	WHAT IT PROTECTS THE BUYER FROM	DEFAULT DEADLINE	HOW TO REMOVE
Loan (Financing)	L(1) / 8A	Losing the deposit if the loan is denied or falls through after acceptance	17 calendar days after receipt of the RPA	Remove Form CR-B — check the loan contingency
Appraisal	L(2) / 8B	Being obligated to buy if the home appraisal is below the purchase price	17 calendar days after receipt of the RPA	Remove Form CR-B — does NOT eliminate FHA/VA appraisal
Inspection / Investigation	L(3) / 8C	Unforeseen property conditions discovered during the inspection	17 calendar days after receipt of the RPA	Remove Form CR-B — see Paragraph 11 for details
Insurance	L(4) / 8D	Being unable to obtain homeowner's insurance	17 calendar days after receipt of the RPA	Remove Form CR-B in California with fire hazard
Title Review	L(6) / 8F	Defects, liens, easements, or encumbrances discovered in the title	17 calendar days after receipt of the RPA	Remove Form CR-B — see Paragraph 10 for details

KEY C.A.R. FORMS · ALWAYS REMEMBER

KEY C.A.R. FORMS		ALWAYS REMEMBER	
CR-B	Contingency Removal — Buyer	EMD goes to...	ESCROW — never directly to the seller
CR-S	Contingency Removal — Seller	Remove contingencies...	In WRITING only — C.A.R. Form CR-B — verbal is not enough
NBP	Notice to Buyer to Perform (min. 2 days)	Days means...	CALENDAR days — EMD is the exception (3 BU)
NSP	Notice to Seller to Perform (min. 2 days)	Buyer agent is...	NOT a party to the RPA — see Paragraph 1D
DCE	Demand to Close Escrow (min. 3 days)	Presenting offers...	As soon as practicable — required by DRE and N
CC	Cancellation of Contract	Dual agency requires...	Written consent from BOTH parties before or at the time of the RPA
RR	Request for Repair	AVID is required...	Every transaction — document your visual inspection
RRRR	Seller Response to Repair Request	Acceptance means...	Signed AND Delivered to the offering party or the buyer
SIP	Seller In Possession (leaseback 29 days or fewer)	Verbal agreements...	Mean nothing in real estate — everything must be in writing
RLAS	Residential Lease After Sale (30 days or more)	Liquidated damages...	3% cap ONLY applies if Paragraph 29 is initialed
TOPA	Tenant Occupied Property Addendum	TDS cancellation right...	3 days after personal delivery — 5 days after mail
AD	Agency Disclosure — give to your buyer before the RPA	Removing contingencies at offer...	Is stated as "against Agent advice" in the RPA its
TDS	Transfer Disclosure Statement — seller delivers to buyer	Offer expiration...	Default is 3 calendar days at 5 PM — shorten in c
SPQ	Seller Property Questionnaire — seller delivers to buyer	COE default...	30 calendar days after acceptance — negotiate s
NHD	Natural Hazard Disclosure Statement	Possession default...	6 PM on the COE date — upon notice of recordat
AVID	Agent Visual Inspection Disclosure — required for all transactions	Appraisal contingency removal...	Does NOT eliminate FHA/VA appraisal cancellati
IDA	Increased Deposit Addendum	All changes to the RPA...	Must be in writing and signed by both parties — P
FVAC	FHA/VA Amendatory Clause		
ABA	Additional Broker Acknowledgement		